

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
IN AND FOR THE COUNTY OF SAN MATEO
Law and Motion Calendar
Honorable David A. Silberman
800 North Humboldt Street, San Mateo, CA 94401
Department 11, Courtroom G
Monday, September 28 2026 at 2 pm**

If you intend to appear on any case on this calendar, you must give notice by 4:00 pm the court day before the hearing to the newly assigned department pursuant to California Rules of Court, Rule 3.1308(a)(1), and San Mateo County L.R. 3.403(b).

Failure to comply with notice as outlined will result in no oral presentation.

Notice of Appearance and Courtesy Copies

1. Email Dept11@SanMateoCourt.org before 4:00 pm the court day before with a copy to all parties or their counsel of record. The email must include the name of the case, the case number, and the name of the party contesting the tentative ruling.
2. Courtesy Copies: You must email a copy of any reply brief, or an Opposition to a Motion for Summary Judgment in an Unlawful Detainer matter to:
LawAndMotionReplyBriefs@SanMateoCourt.org

Day of Hearing

Appearances can be In Person or Remote. If appearing remotely by Zoom, please use your first and last name and mute your audio until your case is called. All parties must use a device with a camera if you are appearing remotely. Please login to the zoom hearing by 1:50 pm.

Remote Appearance Zoom Information

RECORDING OF A COURT PROCEEDING IS STRICTLY PROHIBITED.

<https://sanmateocourt.zoomgov.com/> Meeting ID: 161 964 0802 Password: 734616

TO ASSIST THE COURT REPORTER, the parties are ORDERED to: (1) state their name each time they speak and only speak when directed by the Court; (2) not to interrupt the Court or anyone else; (3) speak slowly and clearly; (4) connect from a computer if at all possible, rather than a cell phone; (5) if a cell phone is absolutely necessary, the parties must be stationary and not driving or moving; (6) no speaker phones under any circumstances; (7) provide the name and citation of any cases referenced; and (8) spell all names, even common names.

Case

Title / Nature of Case

Department 11 is dark 09/28/26.

Argument on contested matters will be heard

October 5, 2026

**(Parties contesting the Court's tentative ruling are still required to e-mail
Department 11 by 4:00 p.m. on 9/25/26)**

02:00 PM

23-CIV-00001

MARIA CUNNINGHAM, ET AL. VS. RONALD ERWIN SCHOLZ , ET AL.

LINE 1

MARIA CUNNINGHAM
RONALD ERWIN SCHOLZ

JONATHAN E. MADISON
SARAH B. SHEPPARD, ESQ.

DEFENDANTS: VERONICA AVELAR AND DENNIS RIVERA'S MOTION FOR JUDGMENT ON THE PLEADINGS [SECOND AMENDED COMPLAINT]

TENTATIVE RULING:

Defendants Veronica Avelar ("Avelar")'s and Dennis Antonio Rivera ("Rivera")'s motion for judgment on the pleadings as to the Second Amended Complaint (SAC) filed by plaintiffs Maria Cunningham, Nicholas G.I. Hubbard-D'encarnacao, Anthony J.D'encarnacao, Michael F. D'encarnacao, David P. D'encarnacao is GRANTED as to the second cause of action and DENIED as to the first cause of action.

Further leave to amend is DENIED.

Defendants' request that the court take judicial notice of four exhibits, A through D, all filings in this Court file, pursuant to Evidence Code section 452, subdivision (d), assuming for simplicity that judicial notice is required, is GRANTED but not for truth of the matter asserted therein.

The underlying action is a dispute over a single-family home located at 1530 Terra Nova Boulevard, Pacifica, CA 94044. In the SAC, plaintiffs allege that in 2012 and thereafter, Defendant Sholz promised them a life estate in the property and in reliance on this promise plaintiffs made significant investments in the property. Then in 2021, however, Defendant Scholz allegedly began to attempt to force Plaintiffs to leave the property which resulted in the filing of an unlawful detainer action against Plaintiffs. Scholz then hired Defendant Avelar as his real estate agent to sell the property and she purchased the property herself. Having purchased the home Defendant Rivera allegedly "initiated a sustained pattern of harassment and coercive conduct intended to force Plaintiff from the home." (SAC ¶¶ 21-28.)

Defendants Avelar and Rivera bring the instant motion for judgment on the pleadings asserting the first cause of action for negligent infliction of emotional distress fails to state facts sufficient to constitute a cause of action against Defendants Avelar and Rivera because the SAC neither alleges nor establishes a duty defendants owed plaintiffs. They argue that the second cause of action fails because it "does not contain any allegation that

Plaintiffs are heirs of a deceased property owner.” (MPA p. 5.) Defendants also assert plaintiffs are collaterally estopped from raising the second cause of action.

Plaintiffs oppose, contending the instant motion is procedurally premature because plaintiffs filed the SAC on December 9, 2025 yet defendants did not file their answer. Instead, on January 9, 2026, defendants proceeded directly with the instant motion for judgment on the pleadings in violation of Code of Civil Procedure section 438, subdivision (f)(2). Next, plaintiffs contend defendants misconstrue the duty imposed by the first cause of action: plaintiffs do not seek to impose liability upon defendants for failing to protect them from the conduct of a third party, rather the affirmative conduct allegedly undertaken by Avelar and Rivera themselves. Plaintiffs contend the doctrine of collateral estoppel does not apply because the court did not finally adjudicate the merits of that claim against defendants Avelar and Rivera.

The standard for judgment on the pleadings is essentially the same as that for a general demurrer, that is, under the state of the pleadings, together with matters that may be judicially noticed, it appears that a party is entitled to judgment as a matter of law. (*Bezirdjian v. O'Reilly* (2010) 183 Cal.App.4th 316, 321-322.) When the moving party is a defendant, they must demonstrate either of the following: (i) the court has no jurisdiction of the subject of the cause of action alleged in the complaint or (ii) the complaint does not state facts sufficient to constitute a cause of action against that defendant. (Code Civ. Proc. § 438 subd. (c)(1)(B).) The grounds for the motion may appear from matters of which the court takes judicial notice. (Code Civ. Proc. § 438, subd. (d).)

Judgment on the pleadings may be granted with or without leave to file an amended complaint or answer. (Code Civ. Proc. § 438, subd. (h)(1).)

Here, plaintiff correctly contends that the instant motion is premature because defendant may only bring a motion for judgment on the pleadings “after... the defendant has already filed his or her answer to the complaint and the time for the defendant to demur to the complaint has expired.” (Code Civ. Proc., § 438, subd. (f)(2).) However, the court may address the merits of the request on its own motion and elects to do so, as authorized by Code of Civil Procedure section 438, subdivision (b)(2).

First Cause of Action—Negligent Infliction of Emotional Distress

The *negligent* causing of emotional distress is not an independent tort but the tort of *negligence*. The traditional elements of duty, breach of duty, causation, and damages apply. The basic inquiry is whether the plaintiff's interests are entitled to legal protection against the defendant's conduct duty is an expression of the sum total of those considerations of policy which lead the law to say that the particular plaintiff is entitled to protection. In considering the existence of “duty” in a given case several factors require consideration including the foreseeability of harm to the plaintiff, the degree of certainty that plaintiff suffered injury, the closeness of the connection between the defendant's conduct and the injury suffered, the moral blame attached to the defendant's conduct, the policy of preventing future harm, the extent of the burden to the defendant and consequences to the community of imposing a duty to exercise care with resulting liability for breach, and the availability, cost, and prevalence of insurance for the risk involved.

(*Eriksson v. Nunnink* (2015) 233 Cal.App.4th 708, 729 [numerous quotations and citations omitted].)

Upon its review of the SAC, the court agrees with plaintiffs: first, the allegations are “materially different” from the singular paragraph in the first amended complaint which contained only a conclusory allegation that defendants had “unduly harassed Plaintiff about signing the move-out agreement” and contacted her at all hours. (First Amended Complaint, ¶ 20.) The SAC adds seven substantial paragraphs (¶¶ 21-28) alleging defendants engaged in a sustained pattern of improper and unsafe conduct, including but not limited to: repeatedly

contacting Plaintiff late at night; appearing at the Property without notice; pounding on doors and windows demanding access; threatening immediate removal if Plaintiff did not sign documents; sending messages at all hours insisting she leave within days; surveilling the exterior of the home; and manipulating exterior fixtures and locks in a manner that caused plaintiffs fear and distress. This conduct allegedly occurred over several months and escalated as Defendants attempted to pressure Plaintiff to vacate. (SAC ¶ 31.) The court is satisfied the SAC alleges a closeness of the defendants' alleged actions, particularly occurring at night, involving threats of forced removal, and directed at an occupant with no immediate alternative housing and plaintiffs' alleged emotional harm.

Defendants' primary argument about lack of duty is misplaced. Accepted as true, Plaintiffs' allege Defendants' own risk-creating conduct — misfeasance — to which the section 1714 of the Civil Code's duty of ordinary care applies of its own force. (See *Kuciemba v. Victory Woodworks, Inc.* (2023) 14 Cal. 5th 993.). Accordingly, judgment on the pleadings as to the first cause of action would be inappropriate at this stage and is DENIED.

Second Cause of Action—Cancellation of Deed

"To prevail on a claim to cancel a [deed], a plaintiff must allege and prove (1) the instrument is void or voidable; and (2) he or she has a reasonable apprehension of serious injury including pecuniary loss or the prejudicial alteration of their position. (§ 3412; *Thompson v. Ioane* (2017) 11 Cal.App.5th 1180, 1193–1194 [218 Cal.Rptr.3d 501].)" (*Lauckhart v. El Macero Homeowners Assn.* (2023) 92 Cal.App.5th 889, 900. "As the party seeking to cancel the assignment through this action, plaintiff must be able to demonstrate that she has some such beneficial interest that is concrete and actual, and not conjectural or hypothetical." (*Saterbak v. JPMorgan Chase Bank, N.A.* (2016) 245 Cal.App.4th 808, 813–814 [citation and quotations omitted].)

Contrary to defendants' position, the court notes that under Civil Code section 3412, plaintiffs are not required to demonstrate they hold a deed, only that they have reasonable apprehension of serious injury or loss to invoke this cause of action.

Here, the SAC alleges the existence of a Grant Deed and Deed of Trust executed and recorded between Defendant Scholz to Defendant Avelar "which were procured and recorded under circumstances involving misrepresentations, coercive conduct, and nondisclosure of material facts by Defendants, including representations that Plaintiff would be permitted reasonable time to transition from the Property and would not be subjected to pressure tactics or forced displacement." (SAC ¶ 36.) The SAC further alleges the deeds amongst defendants are void or voidable "because they were procured through inequitable conduct, coercive tactics, and concealment of material facts directly affecting Plaintiff's rights, interests, and ability to safely vacate the Property. Recording such instruments under these circumstances created a substantial risk of wrongful dispossession and harm to Plaintiff." (SAC ¶ 38.) The court finds plaintiffs' allegations are conclusory and conjectural. More important, it would appear the allegedly injured party with respect to the concealment of "material facts" would be defendants, not plaintiffs given that defendants purchased property from seller Defendant Scholz. For this reason, the second cause of action fails. (See *Saterbak v. JP Morgan Chase Bank, N.A.*, *supra*, 245 Cal. App.4th at 813-814.) Accordingly, the GRANTS the motion and judgment for defendants shall be entered as to the second cause of action.

Leave to Amend

No bright-line rule exists regarding how many opportunities to amend a party must be given. "Perfection in pleading" is not expected or required. (*Lloyd v. R.K.O Pictures, Inc.* (1955) 136 Cal.App.2d 638, 643) nor does the trial court abuse its discretion to deny leave to amend [demur] unless plaintiff shows there is a "reasonable possibility any defect identified by the defendant can be cured by amendment." (*Hale v. Sharp Healthcare* (2010) 183 Cal.App.4th 1373, 1379.) Here, there appears to be no manner in which plaintiffs can amend their complaint

and raise a viable cause of action with respect to the second cause of action. Accordingly, further leave to amend is DENIED.

Any party who contests a tentative ruling must email Dept11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. Monday September 28, 2026 stating, without argument, the portion(s) of the tentative ruling that the party contests. **However any contest will be heard on October 5, 2026.**

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the moving party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

02:00 PM

23-CIV-01026 MAVERICKS BUILDERS, ET AL. VS. RYAN ATKINS, ET AL.

LINE 2

MAVERICKS BUILDERS
RYAN ATKINS

J. MICHAEL MATTHEWS
CATHERINE S. ROBERTSON

CROSS-DEFENDANT/CROSS-COMPLAINANT: HUDSON INSURANCE COMPANY'S MOTION TO DEPOSIT FUNDS BY STAKEHOLDER; FOR DISCHARGE OF STAKEHOLDER; REQUEST FOR ATTORNEY'S FEES PURSUANT TO CCP SECTION 386.6

TENTATIVE RULING:

This is case for breach of contract and related claims arising from a dispute between a contractor, Mavericks Builders ("Mavericks"), and property owners Ryan Atkins and Meghan Concra (collectively, "Defendants").

Defendants filed an Amended Cross-Complaint on June 23, 2023, naming Hudson Insurance Company – the surety on the contractor's license bond issued on behalf of Mavericks – as a Cross-Defendant, along with Mavericks. In response, on July 27, 2023, Hudson filed a Cross-Complaint of its own for declaratory relief, seeking a declaration from this Court as to the respective rights and obligations of the parties in this action – naming Mavericks, Defendants, and Robin Nielsen (the purported owner of Mavericks) as Cross-Defendants. On March 25, 2025, Hudson amended its Cross-Complaint to substitute Cross-Defendant Matthew Emery in place of fictitiously named "MOE 1."

Hudson now moves to deposit funds as a disinterested stakeholder, to be discharged from this action, and for attorney's fees pursuant to Code Civ. Proc. § 386.6.

Hudson's motion to deposit funds is GRANTED.

Hudson's motion to be discharged from this action is GRANTED, **with the limitation that Hudson's release from this action does not release it from commensurate liability for statutory fee awards awarded against its principal, Mavericks, for attorney's fees and costs incurred prior to Hudson's release.**

Hudson's request for attorney's fees is DENIED for failure to provide sufficient support for the requested fees and failure to limit the fees requested to those allowed on fee motion related to interpleader relief (i.e. bringing this motion).

DISCUSSION

Interpleader is a procedure whereby a person holding money or property to which conflicting claims are being made by others, can join the adverse claimants and force them to litigate their claims among themselves. (*Hancock Oil Co. of Calif. v. Hopkins* (1944) 24 Cal.2d 497, 508; *City of Morgan Hill v. Brown* (1999) 71 Cal.App.4th 1114, 1122.)

If the stakeholder has already been sued by one or more of the adverse claimants, and wishes to interplead the other claimants, the defendant-stakeholder may file a verified cross-complaint joining the other adverse claimants, with allegations similar to the complaint in intervention. (Code Civ. Proc., § 386, subd. (b).)

Alternatively, if the defendant-stakeholder claims no interest in the funds or property held, an interpleader cross-complaint need not be filed. The defendant-stakeholder may simply apply to the court for permission to deposit the money or property with the court clerk, and for an order discharging that person from further liability to the adverse claimants:

Where the only relief sought against one of the defendants is the payment of a stated amount of money alleged to be wrongfully withheld, such defendant may, upon affidavit that he is a mere stakeholder with no interest in the amount or any portion thereof and that conflicting demands have been made upon him for the amount by parties to the action, upon notice to such parties, apply to the court for an order discharging him from liability and dismissing him from the action on his depositing with the clerk of the court the amount in dispute and the court may, in its discretion, make such order.

(Code Civ. Proc., 386.5.)

Here, Hudson filed a Cross-Complaint on July 27, 2023. However, the Cross-Complaint did not state a cause of action, expressly or effectively, for interpleader. Hudson's Cross-Complaint does not admit that the funds are due and does not disclaim any interest in them, with uncertainty only as to which competing complaints should be paid. Rather, Hudson alleges that it lacks sufficient information to complete its investigation and determine if liability exists, and that it is "ready, willing, and able to fulfill its obligations under the bond *to the extent that this court declares that Cross-Defendant, Mavericks Builders's claim against Hudson's bond is valid and that Hudson is obligated to perform by way of payment based up on the current claim.*" (Hudson Cross-Complaint, ¶¶ 11-14 [emphasis added].)

However, a stakeholder named as a defendant may later move for interpleader relief, supported by an affidavit. Here, Hudson's declaration in support of this motion now states that it is a mere stakeholder with no interest in the penal sum of the contractor's license bond at issue, that conflicting demands to those sum have been made by multiple parties, and that it is unable to determine the merits of those claims and seeks to deposit the funds with the Court for judicial determination of the parties' rights and obligations. (Cameron Decl., ¶¶ 2-7.) Hudson's supporting declaration satisfies the requirements for interpleader relief.

Hudson's Liability for Costs and Fees Is Not Limited to the Penal Sum of the Bond

Under Civil Code section 2808, where a surety assumes liability upon a conditional obligation, the surety's liability is commensurate with that of its principal.

However, a surety's liability under a contractor's license bond is established by statute, and no burden may be imposed on the surety *other than those specifically set forth by statute.* (*All Bay Mill & Lumber Co. v. Sur. Co.* (1989) 208 Cal.App.3d 11, 15 [emphasis added].) The parties do not dispute that the penal sum of the bond for acts or omissions of the bond principal occurring prior to January 1, 2023, is limited the maximum sum of \$15,000.00. (See Bus. & Prof. Code, §§ 7071.5, 7071.6, subd.(b).)

Defendants argue that Hudson's commensurate liability for attorney's fees and costs associated with this litigation is not capped by the penal sum of the bond. Specifically, Defendants argue that Hudson bears

commensurate liability for \$67,289.97 in fees and costs awarded by this Court to Defendants against Hudson's principal, Mavericks. (See Order Awarding Attorneys' Fees and Costs, filed 08/05/2024, at p. 3.) Defendants further argue that commensurate liability would apply to later awards that may be ordered for costs and fees incurred prior to any order discharging Hudson from this action. In support, Defendants cite *Karton v. Ari Design & Construction, Inc.* (2021) 61 Cal.App.5th 734, 753 [commensurate liability of the surety for attorneys' fees as a cost item is "not limited by the amount of its bond"] and *Pierce v. Western Surety Co.* (2012) 207 Cal. App. 4th 83, 92 [holding that a surety's "obligation to pay costs" including attorneys' fees "is based on its status as a litigant"].

The Court agrees with Defendants. In *Karton*, the Court held that the surety was liable for an award of reasonable attorney's fees ordered against its principal – and cited *Pierce* in support of that holding:

The *Pierce* decision mandates victory for the Kartons against Wesco [the opposing party's surety], as follows. A prevailing party is entitled to costs incurred in pursuing the claim. (Code Civ. Proc., § 1032, subd. (b).) When authorized by statute, attorney fees are allowable as costs. (Code Civ. Proc., § 1033.5, subd. (a)(10).) Under Civil Code section 2808, a surety's liability is commensurate with that of the principal within the express terms of the bond and of pertinent statutes. If the principal would have been liable for attorney fees based on conduct secured by the bond, the surety also is liable for the attorney fees as a cost item. (*Pierce, supra*, 207 Cal.App.4th at pp. 92–93, 143 Cal.Rptr.3d 152.)

Wesco was a surety, as it readily agrees. Wesco's liability therefore is commensurate with that of its principal Ari. By operation of section 1029.8 of the Code of Civil Procedure, Ari is liable to the Kartons for reasonable attorney fees of \$90,000, as we have described. Under *Pierce*, then, so too is Wesco liable to the Kartons for reasonable attorney fees of \$90,000 as a cost item.

(*Karton*, 61 Cal.App.5th at 752.)

The *Karton* Court explicitly rejected the argument that liability for the statutory attorney's fees incurred during litigation could not exceed the bond amount. (*Id.* at 752-53.) The Court explained:

[T]o avoid the costs and risks of litigation, Wesco could have negotiated settlement of its own liability or used interpleader procedures to deposit the amount of its bond in court. (*Harris [v. Northwestern National Ins. Co.]* 6 Cal.App.4th [1061] 1066, 8 Cal.Rptr.2d 234.) Instead, Wesco elected to gamble that it and Ari could avoid liability altogether on the merits. "Having lost that gamble, [Wesco] is not in a position to complain about liability for court costs" (*Ibid.*)

(*Id.* at 753.)

Here, Hudson filed a cross-complaint in this action on July 27, 2023 – (two years after *Karton* was decided and) nearly two and one-half years before filing the instant interpleader motion on January 8, 2026. As discussed above, Hudson's cross-complaint did not expressly, or effectively, plead a cause of action for interpleader. Instead, it only sought declaratory relief, stating that it is "ready, willing, and able to fulfill its obligations under the bond to the extent that this court declares that Cross-Defendant, Mavericks Builders's claim against Hudson's bond is valid and that Hudson is obligated to perform by way of payment based up on the current claim." (Hudson Cross-Complaint, ¶ 14 [emphasis added].)

Like *Karton* and *Harris*, Hudson failed to use interpleader (although it does so now) and, instead, pursued an opportunity to litigate. In doing so, Hudson opened itself up to the risk of incurring liability for court costs.

Accordingly, while the Court grants Hudson's motion for discharge from this action, it does so with the express limitation that Hudson's release from this action does not release it from commensurate liability for attorney's fees and costs awarded against its principal, Mavericks, for fees and costs incurred in this litigation prior to Hudson's discharge.

Hudson Fails to Sufficiently Support Its Request for Attorney's Fees and Costs, Which Are Limited to Fees and Costs Related to Pursuing Interpleader Relief

Under Code Civ. Proc. § 386.6(a), a party seeking interpleader relief may recover attorney's fees and costs associated with that effort:

A party to an action who follows the procedure set forth in Section 386 or 386.5 may insert in his motion, petition, complaint, or cross complaint a request for allowance of his costs and reasonable attorney fees incurred in such action. In ordering the discharge of such party, the court may, in its discretion, award such party his costs and reasonable attorney fees from the amount in dispute which has been deposited with the court. At the time of final judgment in the action the court may make such further provision for assumption of such costs and attorney fees by one or more of the adverse claimants as may appear proper.

In *Sweeny v. McClaran* (1976) 58 Cal.App.3d 824, 827, 831 a surety on a contractor's license bond was sued for fringe payments allegedly owed by the contractor and, in response, filed a cross-complaint seeking declaratory relief and indemnification. The surety later amended its cross-complaint to add an interpleader cause of action. (*Ibid.*) The trial court discharged the surety and awarded costs and attorney's fees from the deposited sum. (*Id.*, at p. 827.) On appeal, the Court upheld the discharge but reversed the fee award, holding that trial court improperly awarded fees incurred for work performed on all four causes of action in the cross-complaint, including the declaratory relief claim, rather than limiting the award to fees incurred in pursuit of interpleader relief. (*Id.*, at p. 831.)

Here, Hudson asserts that it "has incurred attorney's fees and costs in investigating the claims asserted, communicating with the cross-defendants, protecting the penal sum of the Bond, and pursuing declaratory and interpleader relief." (Cameron Decl., ¶ 6.) Hudson further states that the "total amount of attorney's fees to date is \$7,638.47," although Hudson only requests \$3,000. (*Id.*)

Like *Sweeny*, it appears Hudson may be seeking attorney's fees and costs beyond those incurred in pursuit of interpleader relief. Hudson also fails to provide standard fee motion details, such as a description of the specific work performed in relation to pursuing interpleader relief, the hours spent performing the work, and billing rates of the attorneys who performed the work. While a trial court has broad discretion to use its experience in judging the value of professional services rendered, some description of the work performed is necessary to exercise that discretion reasonably. Here, Hudson fails to clearly limit the scope of its request to allowable fees incurred in pursuing interpleader relief and fails substantiate amount of the requested award with details regarding work performed.

Accordingly, Hudson's request for attorney's fees is DENIED. However, if Hudson timely notices its contest of this tentative ruling and indicates (among any other issues it wishes to contest) in its email notice that it would like to provide a supplemental declaration of counsel under penalty of perjury limited to detailing a reasonable number of hours spent pursuing interpleader relief and support for the "fair and reasonable" "rate charged to [its]

insurance company clients", it may file one by September 30, 2026 at noon and the Court will consider awarding the loadstar amount at the hearing where Defendants will be given the opportunity to respond.

Any party who contests a tentative ruling must email Dept11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. Monday, September 28, 2026 stating, without argument, the portion(s) of the tentative ruling that the party contests. **However any contest will be heard on October 5, 2026.**

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the moving party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

02:00 PM

24-CLJ-03049 PROVIDENT CREDIT UNION, VS. JEANNIE CHAN
LINE 3

PROVIDENT CREDIT UNION
JEANNIE CHAN

JOHN D. MENDONZA
PRO PER

PLAINTIFF: PROVIDENT CREDIT UNION'S MOTION FOR SUMMARY ADJUDICATION

TENTATIVE RULING:

Plaintiff Provident Credit Union's unopposed Motion for Summary Adjudication, filed Dec. 29, 2025, which seeks summary adjudication of the Complaint's First Cause of Action for "Breach of Loan Agreement (VISA)," is GRANTED. (Code Civ. Proc. § 437c.)

This is an uncontested breach of contract (breach of loan agreement) case. Defendant Jeannie Chan does not dispute that she owes \$15,347.31 under the subject Visa credit card loan agreement. Defendant has filed an Answer admitting that the Complaint's allegations are true, and stating that Defendant asserts no defenses. Defendant merely requested, in her Answer, that she be allowed to make payments pursuant to a payment plan. (See Oct. 4, 2024 Answer.)

With this Motion, Plaintiff met its initial burden of presenting evidence demonstrating that in 2017, Defendant entered into the subject Visa credit card agreement with Plaintiff, thereafter incurred a debt to Plaintiff of \$15,347.31, and has not paid the amount due. (Code Civ. Proc. § 437c(p)(1).) As noted, Defendant then filed an Answer to the Complaint, admitting that all of the Complaint's allegations are true, and that Defendant is not asserting any defense(s). With this Motion, Plaintiff also filed a Separate Statement of Undisputed Material Facts, which cites to supporting evidence showing that Defendant owes \$15,347.31 under the loan agreement, and that per the loan agreement's terms, Plaintiff is entitled to \$3,270 in attorney's fees, plus \$870 in costs, for total breach of contract damages of \$19,487.31, calculated as follows:

\$15,347.31 Amount owed under the loan agreement;
\$3,270 Attorney's fees (see Dec. 29, 2025 Tinga Decl., ¶¶ 3-7; Dec. 29, 2025 "Notice of Lodgment," Ex. F);
\$870 Costs of suit (see Dec. 29, 2025 Tinga Decl., ¶ 8 [Complaint filing fee of \$370 + motion filing fee of \$500]);
for a total of \$19,487.31 owed for breach of the loan agreement.

Plaintiff having met its initial burden under Code Civ. Proc. § 437c(p)(1), the burden then shifted to Defendant to come forward with evidence creating a triable issue of fact as to the First Cause of Action for "Breach of Loan Agreement (VISA), which Defendant has not done. (Code Civ. Proc. § 437c(p)(1).) Defendant has not opposed the motion, and has not disputed any of Plaintiff's Statement of Undisputed Material Facts. (CRC 8.54(c) ["A failure to oppose a motion may be deemed a consent to the granting of the motion."]) Defendant has also admitted that the Complaint's allegations are true, and that Defendant has no defense(s). (See Oct. 4, 2024 Answer.)

Accordingly, Plaintiff's Motion for Summary Adjudication of the Complaint's First Cause of Action for "Breach of Loan Agreement (VISA)" is GRANTED. (Code Civ. Proc. § 437c.) At Plaintiff's request, the Complaint's Second and Third Causes of Action ("account stated" and "money lent") are DISMISSED with prejudice.

Plaintiff is entitled to entry of judgment in Plaintiff's favor, and against Defendant, for breach of the loan agreement, in the amount of \$19,487.31, calculated as provided above. If the tentative is not opposed, the Court will sign the judgment filed with the motion on December 29, 2025.

Any party who contests a tentative ruling must email Dept11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. Monday, September 28, 2026 stating, without argument, the portion(s) of the tentative ruling that the party contests. **However any contest will be heard on October 5, 2026.**

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

02:00 PM

25-CIV-01909 DAVID COLLINS VS. FCA US, LLC, ET AL.

LINE 4

DAVID COLLINS
FCA US, LLC

LARRY W. CHAE
LAUREN K. VANDENBURG

PLAINTIFF: DAVID COLLINS'S MOTION TO COMPEL INITIAL DISCLOSURES PURSUANT TO CALIFORNIA CODE OF CIVIL PROCEDURE 871.26 AND REQUEST FOR MONETARY SANCTIONS

TENTATIVE RULING:

This is a Song-Beverly Consumer Warranty Act action concerning a 2020 RAM 1500. FCA served initial disclosures on July 28, 2025 — comprising, among other things, the owner's manual, warranty booklet, sales brochure, Monroney label, warranty-claim documents, service bulletins, recall documents, and repair-order reports.

Nearly a year later, on June 2, 2026, Collins served a meet-and-confer letter contending FCA's disclosures were deficient and demanding verified written responses, disclosure of FCA's search methodology, and supplemental production.

On July 8, 2026 this Court Ordered the parties to an Informal Discovery Conference before the Civil Commissioner. Both parties violated that Court Order by failing to submit the required statements and the Commissioner continued the Conference and reiterated the Order that the parties submit statements. But Plaintiff again didn't submit a statement (while Defendant did) and Plaintiff sent an attorney to the Conference who lacked knowledge of the underlying dispute. Plaintiff is admonished that its next unexcused violation of Court Orders will result in a significant sanction. Plaintiff was advised that his motion appeared to be not well taken and that he should withdraw it based on the content of the Conference.

Plaintiff did not withdraw the motion, did not file a reply and has never responded to Defendant's arguments. It has not cited to any authority providing for a motion to compel in this context, a requirement of a verification in this context, or responded to Defendant's argument and evidence that the motion is moot. Accordingly the motion is DENIED.

Any party who contests a tentative ruling must email Dept11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. Monday, September 28, 2026 stating, without argument, the portion(s) of the tentative ruling that the party contests. **However any contest will be heard on October 5, 2026.**

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

02:00 PM

25-CLJ-02641 KARON REID VS. BWNVT MOTORS, INC., ET AL.

LINE 5

KARON REID
BWNVT MOTORS, INC.

MICHAEL A. KLITZKE
JOHN W. RANUCCI

PLAINTIFF: KARON REID'S MOTION FOR ORDER DEEMING MATTERS ADMITTED FOR BWNVT, MOTORS INC. DBA SERRAMONTE FORD'S FAILURE TO RESPOND TO REQUESST FOR ADMISSION, SET ONE

TENTATIVE RULING:

This motion was continued to November 30, 2026 with agreement of the Plaintiff to facilitate finalizing a settlement.

02:00 PM

CIV529593

MICHAEL L. CACCI, ET AL. VS WENDY HOPKINS, ET AL.

LINE 6

MICHAEL L. CACCI
SALLY HOPKINS

MARK HAESLOOP
PRO PER

PLAINTIFF: SALLY HOPKINS'S MOTION TO ENFORCE SETTLEMENT

TENTATIVE RULING:

Motion papers and supporting documents must be served on all parties at least 16 court days before the hearing. (See Code Civ. Proc. section 1005 subd. (b).) Proof of service of the moving papers must be filed no later than five court days prior to the date appointed for hearing. (See Cal. Rules of Court, rule 3.1300(c).) No proof of service was filed until September 22, 2026 and that proof of service was invalid for numerous reasons—Motion is accordingly DENIED.

However, even if the motion was properly served and the proof of service was timely filed, the motion still lacks merit for numerous reasons. None of the relief that the moving party seeks appears to be within the Court's jurisdiction. *Machado v. Myers* (2019) 39 Cal. App. 5th 779, 790 ("The power of the trial court under Code of Civil Procedure section 664.6 is extremely limited. The court is powerless to impose on the parties more restrictive or less restrictive or different terms than those contained in their settlement agreement.")

The Court also has no evidence that would support a conclusion that there is any need/jurisdiction to enforce a purported ten-year-old settlement agreement. *Stump's Mkt., Inc. v. Plaza de Santa Fe Ltd., LLC* (2013) 212 Cal. App. 4th 882, 889 (finding the Court erred by retaining jurisdiction over an extended period of years). To the extent that the moving party believes that the purported settlement effects relief at issue in a bankruptcy case, it would appear it should be raised (if appropriate) in the bankruptcy case.

Any party who contests a tentative ruling must email Dept11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. Monday, September 28, 2026 stating, without argument, the portion(s) of the tentative ruling that the party contests. **However any contest will be heard on October 5, 2026.**

If the tentative ruling is uncontested, it shall become the order of the Court and will be reflected in the minute Order. No separate order will follow.

NO UNLAWFUL DETAINER MATTERS ON CALENDAR FOR 9/28/26

POSTED: 9/24/26 at 1:40 PM